

Summer Term Examination,

MOHAMMED NIHAL

(MS18BC002)

B.COM (ACCA)

SECTION - A.

2) any/.

Unfair competition is using illegal deceptive, and fraudulent selling practices that harm consumers or other businesses in order to gain a competitive advantage in the market. Federal and state laws fight against these issues. At its core, unfair competition is a business tort designed to stop any unfair practices that might

b. happening in the context of a business setting. Unfair competition is essentially a deceptive or wrongful business practice that economically harms either consumers or business entities.

3) am).

a). BAJAJ - Bajaj Electrical Limited.

b). BATA & BATA FOAM for footwear
- Bata India Ltd.

c). BISLERI - Aquas Minerals Ltd.

d). ENFIELD BULLET - Enfield India Ltd.

e). GLAXO - Glaxo India Ltd.

f). Infosys - Infosys Technologies Ltd.

Exam.

Pg: 3

The World Intellectual Property Organization

or WIPO is a UN specialized agency created in 1967 to promote ~~and~~

intellectual property protection and encourage creative activity all over the world. WIPO is basically a global forum for IP policy, service, information and co-operation.

The World Intellectual Property Organisation

or WIPO is a global body for the promotion and protection of Intellectual Property Rights.

* It acts as a global forum for IP services.

* WIPO is a self funded agency of the United Nations.

* With 194 members, WIPO's motto is to encourage creative activity, to promote the protection of intellectual property throughout the world.

* It is at present headed by Francis Gurry, who is its Director General. WIPO is headquartered in Geneva, Switzerland.

* WIPO has its origin in the United International Bureaux for the Protection of Intellectual Property which was established in 1893.

6 Jan 11.

In India, Software is not directly ~~patented~~ patented. But it can be granted patent if it is attached with ~~novel~~ novel hardware, an invention which is unique and capable of industrial use. In a country like India, with such ingenious minds, it is almost impossible to trust the fact that software patent filing in India has still not been allowed completely. The logic behind

pg: 5

denying patents for software per se in India
is to promote innovation. If software,
per se, is patented a majority of the software
inventions will be owned by a minority of
firms. This scenario is ~~im~~ unimaginable
in a developing country like India, where,
programmers must be given the freedom to
innovate.

SECTION-B.

pg: 6

Q/ans.

Difference between Copyright, Trademark and Patent.

Category.	COPYRIGHT	TRADEMARK	PATENT.
Governed Under.	The Copyright Act 1957	Trademark Act 1999	The Patents Act 1970
Types of protection and works.	Protection of original creative expressions like literary works, artistic works, dramatic works, etc.	Protection of unique name that makes a brand distinct from others. Can include name, slogan, colour etc.	Protection of inventions that are novel, original and have industrial utility.
Validity and Reach.	Valid for life time of the author + 60 years after his/her death. Protection available in most of the countries in the world.	Validity for 10 years can be made perpetual by renewing the trademark every 10 years. Territorial in nature to claim rights should be applied to each country individually.	Validity for 20 years starting from the day the application is first made. It is also a territorial right and therefore it is effective only within the territory of India. Separate patents required to be filed for each country.

Category	COPYRIGHT	TRADEMARKS	PATENT
Secures	Copyright secures creative or intellectual creations.	Trademarks secure the branding under which products and services are sold.	Patent secures inventions that are useful for the world and have some use.
Right comes into existence	Exclusive rights over the copyright are created the moment the authorship creates the work.	Once the trademark gets registered the applicant of the mark can claim complete right over the said mark. Registration usually takes 12-17 months.	Patent registration about 2-3 years in all. But the owner can stop anyone else from claiming right over a particular patent the moment he applies for provisional patent.
Provisional Application Requirement	No provisional application required.	Trademark registration does not include provisional application but it requires a trademark search.	A provisional application gets you 12 months of time to file a complete specification and priority date claim.
Symbolic Representation	No symbolic representation to show registration.	Used when registration is in process: TM Used when registration is complete: ®	No symbolic representation to show registration.

[0]oml

Major Rights of a Copyright owner in India.

a). Right of Reproduction.

This is the most prominent right which is acquired after the copyright protection. This right authorizes the person having such copyright to make copies of the protected work in any form. In the modern context copying a song on a compact Disc or on any sound and visual recording can be considered as a reproduction of the content. Prior to copying the permission of the author is required unless it can be shown that such copying is not intended to make any commercial benefits out of it.

b) Right to Distribute.

Right to distribute is an offshoot of the right of reproduction. The person who owns the copyright owner may distribute his work in any manner he deems fit. The owner is also entitled to transfer the whole or some rights in favor of any other person while retaining others. For example, he can entitle any person to translate his work.

c) Right to make Derivative works.

The copyright has the right to use his work in various ways, for instance making adaptations, or translations. One example of adaptation is making a movie based on a novel. To be able to make any derivative work the consent of the owner is mandatorily required. In such situation, certain other rights of the owner also come into play like the right to integrity.

d) Right to Publicly Perform.

The owner of the copyright has the right to publicly perform his works. Example, he may perform dramas based on his work or may perform at concerts, etc. This also includes the right of the owner to broadcast ~~his~~ his work.

This includes the right of the owner to make his work accessible to the public on the internet.

This empowers the owner to decide the terms and conditions to access his work.

e) Right to Follow.

This right is granted generally only to the authors and artists. This empowers the authors to obtain a percentage of the subsequent sales of his work and is called Droit de suite or Right to Follow. The right is also available to artists on the resale of their works.

f) Right of Paternity.

The right of Paternity or Attribution give the copyright owner a right to claim authorship of the work. Under the right of paternity a copyright owner can claim due credit for any of his works. Thus, if a movie is produced based on a book by an author, and he hasn't been given due credit in it, he can sue the maker to acknowledge his work.

g) Private Copying.

This is an exception to the reproduction rights which are attained by the owner. According to this right, any person can make copies of the copyright protected work if it is provided that such copying is for educational purposes and that there is no commercial motive behind such copies being made.

h) Sui Generis Right.

pg: 12

The ordinary copyright law often fails to protect the computer software and databases since the essential element of creativity is not present in such databases. Therefore, there was a need for new law to protect such software and databases. The law of Sui Generis was introduced to solve the problem of evolving database on the whole. A database is a compilation or arrangement of information which may not be creative, it may still require protection from unauthorized copying. However, this may require certain modifications such as the making of copies has to be excluded from such copyright protection. Such database right exists for a fifteen year period.

1) cont.

First step for Patent Registration in India:-

Filing of Patent Application in Patent
Registration Office, India:-

Applying for the ~~the~~ registration of the patent
is the first step to start the process of the patent
registration in India. The question then arises
in who are eligible for filing patent application
in India for Patent Registration? To answer
this question, the patent Act says that patent
Application for the invention may be made by
"true and first inventor of the invention".
"Assignee of the person claiming to be the
true and the first inventor". "Legal representative
of any deceased person who immediately
before his death, was entitled to make
patent Application" for the patent registration.

Therefore, only defined applicant is eligible for ~~the~~ filing of patent application for patent registration in India. For patent registration in India, Indian Patent Office accepts the prescribed forms and documents along with the official fee as given under the first ~~set~~ schedule of patents rule.

The following form are to be submitted in the patent registration office to complete the patent registration process;

Form 1: Application for grant of a patent.

Form 2: Provisional or complete specification

Form 3: Statement and undertaking

~~For~~

Form 5: Declaration as to Inventorship.

Form 26: Form for authorization of a patent agent or any person in a matter of proceeding under the Act.

Form 23: To be submitted by a small entity or a startup.

Second Step: Publication of Patent application in the official Gazette.

Once the patent application is filed, it will be published by the IPO after 18 months in the official gazette of the IPO for the public. Publication of Patent application is an automatic process, it ~~does~~ does not require any request from the patent office in India.

Third Step: Filing Request for examination.

There is a prescribed form and timeline for filing an application for registration of patent. The application is then examined by authorities.

Fourth Step: ~~At~~ Issuance of objections in
examination report

Fifth step. Patent Grant

13) b) am).

SECTION - C

Pg: 17

The Patent Cooperation Treaty provides us with an overview of an international treaty which is duly administered by the World Intellectual Property Organisation (WIPO). The Patent Cooperation Treaty (PCT) is an international treaty with more than 147 contracting states.

It is administered by WIPO. PCT is an international treaty which provides a system for filing a patent application and allow us to obtain patents in multiple countries around the world on the basis of a single patent application. As PCT simplifies

The procedure for obtaining patent protection in many countries, making it more efficient and economical for

a) User of the patent system, that is an applicant and inventor. ~~national~~

P9:18

b) National offices.

In the PCT simplifies the Patent Filing Process for applicant and ultimate decision to ~~grant or~~ grant a patent solely exclusively with each national or regional patent office.

A single PCT application has the same legal effect as an national patent application in each of the PCT contracting states. Without the PCT we would have to file a separate patent application in each country separately and independently.

PCT save application time, effort and expense of preparing separate applications in various languages and file it in different signatory states. Patent.

Paris Convention Treaty - file an application under the PCT, directly or within the 12 month period as provided for by the Paris Convention from the filing date of a first Application, which is valid in all contracting states of the PCT.